

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
GUSTAVO ACOSTA,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. ASHLEY HINES,
Shield No. 31766 (Tax Id. No. 965192), Individually
and in her Official Capacity, and POLICE OFFICERS
"JOHN DOE" #1-10, Individually and in their Official
Capacity (the name John Doe being fictitious, as the
true names are presently unknown),

Defendants.

-----X

SUMMONS

Jury Trial Demanded

Plaintiff designates Bronx County
as the place of trial.

The basis of venue is:
CPLR § 504(3)

To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
September 21, 2022



COHEN & FITCH LLP
Attorneys for Plaintiff
110 E. 59th St, Suite 3200
New York, N.Y. 10022
(212) 374-9115

TO:

SLYVIA O. HINDS-RADIX
Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

P.O. ASHLEY HINES
45th Precinct
2877 Barkley Ave.
Bronx, NY 10465

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Defendants.

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Plaintiff GUSTAVO ACOSTA by his attorneys, COHEN & FITCH LLP, complaining of
the defendants, respectfully allege as follows:

FACTS

1. Plaintiff GUSTAVO ACOSTA is a Latino male and has been at all relevant times a resident of Bronx County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned the individually named defendants, P.O. ASHLEY HINES, Shield No. 31766 (Tax Id. No. 965192) and POLICE OFFICERS “JOHN DOE” #1-10 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages, and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

The Incident

8. On or about July 10, 2021, plaintiff GUSTAVO ACOSTA was lawfully driving in the vicinity of Balcom Ave. and Bruckner Blvd., in the County of Bronx, City, and State of New York.

9. At approximately 9:23 p.m., on the above-mentioned date and in the vicinity of the above-mentioned location, despite the fact plaintiff had not committed any traffic and/or equipment violations, nor any other crimes and/or violations of the law, plaintiff was seized by defendants HINES and/or “JOHN DOE” #1-10, who pointed their firearms in his direction and directed him to pull over.

10. Thereafter, defendants HINES and/or “JOHN DOE” #1-10 approached plaintiff’s vehicle with their weapons drawn, pointed them at plaintiff, opened plaintiff’s driver’s side door, and then forcefully pulled plaintiff from his vehicle, and pushed him up against same.

11. At no time was the force used by defendants HINES and/or “JOHN DOE” #1-10 in pointing their weapons at plaintiff – who was unarmed and not a threat – or in forcefully pulling plaintiff from his vehicle and violently pushing him into same, reasonable nor justified.

12. At no time did said officers request plaintiff provide them with his license and registration, all of which were valid.

13. Subsequently, defendants HINES and/or “JOHN DOE” #1-10 placed plaintiff under arrest by handcuffing his arms tightly behind his back.

14. At no time on July 10, 2021, did defendants HINES and/or “JOHN DOE” #1-10 possess probable cause to arrest plaintiff.

15. At no time on July 10, 2021, did defendants HINES and/or “JOHN DOE” #1-10 possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

16. During this time, defendant HINES and/or “JOHN DOE” #1-10 threatened to shoot plaintiff’s small dog that was in the back seat of his vehicle.

17. In addition, defendants HINES and/or “JOHN DOE” #1-10 began to search said vehicle. However, no contraband was recovered as a result of this or any searches nor did plaintiff possess any contraband and/or have custody or control over same.

18. Additionally, defendants HINES and/or “JOHN DOE” #1-10 searched plaintiff’s person and effects. However, no contraband was recovered as a result of this search nor did plaintiff possess any contraband and/or have custody or control over same.

19. At no time on July 10, 2021, did defendants HINES and/or “JOHN DOE” #1-10 possess probable cause and/or reasonable suspicion to search plaintiff’s vehicle, person, and/or effects nor did they obtain voluntary consent from him to do so.

20. At no time on July 10, 2021, did defendants HINES and/or “JOHN DOE” #1-10 possess information that would lead a reasonable officer to believe probable cause and/or reasonable suspicion existed to search plaintiff’s vehicle, person, and/or effects.

21. At no time on July 10, 2021, did plaintiff possess any contraband and/or controlled substances, nor did plaintiff have custody and control over any contraband and/or controlled substances and/or forged instruments, nor did plaintiff commit any crimes or offenses or behave unlawfully in any way, nor was any evidence or contraband found in his vehicle nor on his person or in his effects.

22. Subsequently, defendants HINES and/or “JOHN DOE” #1-10 placed plaintiff in an NYPD vehicle and transported him to a nearby police precinct.

23. Upon arrival at said precinct, plaintiff was searched again, fingerprinted, photographed, confined against his will in a holding cell for several hours, and charged with crimes by defendants HINES and/or “JOHN DOE” #1-10.

24. Specifically, defendants HINES and/or “JOHN DOE” #1-10 charged plaintiff with Criminal Possession of a Controlled Substance, Unlawful Fleeing a Police Officer in a Motor Vehicle, and Reckless Driving. However, at no time did plaintiff commit any of the aforementioned crimes and/or offenses nor possess any contraband or have custody or control over same, nor did he behave unlawfully in any way.

25. In addition, while plaintiff was in custody at said precinct, he suffered an asthma attack as a result of the stress/trauma of the arrest, having guns pointed at him by the aforementioned officers, and because said officers threatened to shoot his small dog.

26. As a result, plaintiff had to be transported to a nearby hospital for medical treatment.

27. While at the hospital, upon information and belief, plaintiff remained handcuffed and/or shackled.

28. After being released from the hospital, plaintiff was transported to Central Booking where he was searched, moved from cell to cell, and further detained until he was released following arraignment.

29. In connection with plaintiffs' arrest, defendants HINES and/or "JOHN DOE" #1-10 filled out false and/or misleading police reports and forwarded them to prosecutors at the Bronx County District Attorney's Office. Thereafter, defendants HINES and/or "JOHN DOE" #1-10 repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff's arrest.

30. Specifically, defendants HINES and/or "JOHN DOE" #1-10 falsely stated that they had observed plaintiff driving eighty (80) miles per hour in a zone with a speed limit of thirty (30) miles per hour, that plaintiff refused to pull over his vehicle for three (3) to four (4) blocks after defendants HINES and/or "JOHN DOE" #1-10 activated their lights and sirens for the purpose of directing plaintiff to stop, and that defendants HINES and/or "JOHN DOE" #1-10 observed plaintiff to have in his custody and control in the center console of his vehicle, crack cocaine and heroin.

31. As a result of the foregoing, plaintiff spent approximately twenty-four (24) hours in custody before he was released following arraignment. Thereafter, plaintiff was maliciously prosecuted and forced to make approximately two (2) additional court appearances, before all charges against him were dismissed in their entirety on or about October 14, 2021.

32. In addition, as a result of the foregoing, plaintiff's vehicle and monies that were within said vehicle were not returned to him and he lost his employment with Door Dash as he no longer had a vehicle to make food deliveries.

33. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, economic damages, physical injuries and pain, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

34. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

35. All of the aforementioned acts of defendants, their agents, servants, and employees, were carried out under the color of state law.

36. All of the aforementioned acts deprived plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

37. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

38. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

39. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF ARISING
FALSE ARREST UNDER 42 U.S.C. § 1983**

40. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

41. As a result of the aforesaid conduct by defendants HINES and/or “JOHN DOE” #1-10, plaintiff was subjected to an illegal, improper, and false arrest by the defendants HINES and/or “JOHN DOE” #1-10, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

42. As a result of the foregoing, plaintiff’s liberties were restricted for an extended period of time, he was put in fear for his safety, and he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF ARISING
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983**

43. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

44. Defendants HINES and/or “JOHN DOE” #1-10 created false evidence against the plaintiff.

45. Defendants HINES and/or “JOHN DOE” #1-10 forwarded false evidence and false information to prosecutors in the Bronx County District Attorney’s Office – namely, the defendants falsely informed prosecutors that they had observed plaintiff driving eighty (80) miles per hour in a zone with a speed limit of thirty (30) miles per hour, that plaintiff refused to pull over his vehicle for three (3) to four (4) blocks after defendants HINES and/or “JOHN DOE” #1-10 activated their lights and sirens for the purpose of directing plaintiff to stop, and that defendants HINES and/or “JOHN DOE” #1-10 observed plaintiff to have in his custody and control in the center console of his vehicle, crack cocaine and heroin.

46. Defendants HINES and/or “JOHN DOE” #1-10 misled the prosecutors by creating false evidence against the plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.

47. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants HINES and/or “JOHN DOE” #1-10 violated plaintiff’s constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

48. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

49. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

50. Defendants HINES and/or “JOHN DOE” #1-10 misrepresented and falsified evidence before the Bronx County District Attorney.

51. Defendants HINES and/or “JOHN DOE” #1-10 did not make a complete and full statement of facts to the District Attorney.

52. Defendants HINES and/or “JOHN DOE” #1-10 withheld exculpatory evidence from the District Attorney.

53. Defendants HINES and/or “JOHN DOE” #1-10 were directly and actively involved in the initiation of criminal proceedings against plaintiff.

54. Defendants HINES and/or “JOHN DOE” #1-10 lacked probable cause to initiate criminal proceedings against plaintiff.

55. Defendants HINES and/or “JOHN DOE” #1-10 acted with malice in initiating criminal proceedings against plaintiff.

56. Defendants HINES and/or “JOHN DOE” #1-10 were directly and actively involved in the continuation of criminal proceedings against plaintiff.

57. Defendants HINES and/or “JOHN DOE” #1-10 lacked probable cause to continue criminal proceedings against plaintiff.

58. Defendants HINES and/or “JOHN DOE” #1-10 acted with malice in continuing criminal proceedings against plaintiff.

59. Defendants HINES and/or “JOHN DOE” #1-10 misrepresented and falsified evidence throughout all phases of the criminal proceedings.

60. Specifically, defendants’ HINES and/or “JOHN DOE” #1-10 made the aforementioned false and misleading allegations regarding the circumstances surrounding plaintiff’s arrest.

61. Notwithstanding the perjurious and fraudulent conduct of defendants HINES and/or “JOHN DOE” #1-10, the criminal proceedings were terminated in plaintiff’s favor on or about October 14, 2021.

62. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM FOR RELIEF
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

63. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

64. The level of force employed by defendants HINES and/or “JOHN DOE” #1-10 as set forth above, was objectively unreasonable and in violation of the constitutional rights of the plaintiff.

65. Specifically, the defendants pointed their loaded firearms at plaintiff, who was unarmed and in no way posing a danger to the safety and security of the officers or anyone else.

66. As a direct and proximate result of the foregoing, plaintiff sustained, *inter alia*, physical injury, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

SIXTH CLAIM FOR RELIEF
FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

67. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

68. Defendants HINES and/or “JOHN DOE” #1-10 had an affirmative duty, and the opportunity to intercede when plaintiff’s constitutional rights were being violated in defendants’

HINES and/or “JOHN DOE” #1-10 presence by the use of excessive force and by fabrication of evidence.

69. Defendants HINES and/or “JOHN DOE” #1-10 further violated plaintiff’s constitutional rights when they failed to intercede and prevent the violation or further violation of plaintiff’s constitutional rights and the injuries or further injuries caused as a result of said failure.

70. As a result of the defendants’ HINES and/or “JOHN DOE” #1-10 failure to intercede when plaintiff’s constitutional rights were being violated in defendants’ HINES and/or “JOHN DOE” #1-10 presence, plaintiff sustained, *inter alia*, physical injuries, loss of liberty, economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

SEVENTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

71. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

72. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

73. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- A. arresting individuals regardless of probable cause in order to inflate the officer’s arrest statistics; and,
- B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,

- C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- D. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
- E. handcuffing all hospitalized arrestees/prisoners for the entirety of their hospitalization regardless of their risk of flight or safety risk to others; and,
- F. utilizing excessive force in effectuating arrests when there is no excuse or justification for any such force; and,
- G. failing to intercede to prevent violations of plaintiff's constitutional rights; and
- H. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

74. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being, and constitutional rights of the plaintiffs.

75. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.

76. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.

77. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.

78. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.

79. The acts complained of deprived the plaintiffs of their rights:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon them; and
- D. To receive equal protection under the law.

**PENDANT CITY LAW CLAIMS PURSUANT TO
2021 N.Y.C. LOCAL LAW NO. 48, N.Y.C. ADMIN. CODE §§ 8 – 8802, ET SEQ.**

**FIRST CLAIM FOR RELIEF UNDER N.Y.C. LAW
VIOLATION OF AC-8-8802 RIGHTS – UNREASONABLE SEARCH & SEIZURE**

80. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

81. The acts of defendants HINES and/or "JOHN DOE" #1-10 constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

82. The acts of HINES and/or "JOHN DOE" #1-10 caused plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures.

83. Defendants HINES and/or "JOHN DOE" #1-10, while acting in the scope of their employment for THE CITY OF NEW YORK as police officers, unlawfully seized, frisked, and searched the plaintiff, before detaining plaintiff and further causing his detention for approximately twenty (24) hours in total.

84. By reason of the acts and omissions by defendants HINES and/or “JOHN DOE” #1-10 as described above, plaintiff has endured *inter alia*, loss of liberty, physical injuries, economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, and was otherwise damaged and/or injured.

**SECOND CLAIM FOR RELIEF UNDER N.Y.C. LAW
VIOLATION OF AC-8-8802 RIGHTS – EXCESSIVE FORCE**

85. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

86. The acts of defendants HINES and/or “JOHN DOE” #1-10 constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

87. The acts of HINES and/or “JOHN DOE” #1-10 caused plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

88. That defendants HINES and/or “JOHN DOE” #1-10, while acting in the scope of their employment for THE CITY OF NEW YORK as police officers, unlawfully used excessive force against plaintiff causing physical injuries.

89. As a direct and proximate result of the foregoing conduct of the defendants as set forth above, plaintiff, sustained, *inter alia*, physical injuries, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

**THIRD CLAIM FOR RELIEF UNDER N.Y.C. LAW
VIOLATION OF AC-8-8802 RIGHTS – FAILURE TO INTERVENE**

90. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

91. The acts of defendants HINES and/or “JOHN DOE” #1-10 constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

92. Defendants HINES and/or “JOHN DOE” #1-10 had a duty to protect plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

93. The defendants that did not engage in the unreasonable search and seizure of plaintiff and/or the excessive force against plaintiff as outlined above, but were present when other officers violated those rights of plaintiff, had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

94. Defendants HINES and/or “JOHN DOE” #1-10 failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect plaintiff from a violation of his rights.

95. As a direct and proximate result of the foregoing conduct of the defendants as set forth above, plaintiff, sustained, *inter alia*, loss of liberty, physical injuries, economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

FOURTH CLAIM FOR RELIEF UNDER N.Y.C. LAW
VIOLATION OF AC-8-8802 RIGHTS – CITY LIABILITY UNREASONABLE
SEARCH/SEIZURE AND EXCESSIVE FORCE

96. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

97. Defendants HINES and/or “JOHN DOE” #1-10 are “covered individuals” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-8801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as Special Patrolmen.

98. Defendant THE CITY OF NEW YORK as the employer of the covered individual defendants HINES and/or “JOHN DOE” #1-10 is liable to the plaintiff for the wrongdoing of the covered individual defendants HINES and/or “JOHN DOE” #1-10.

99. The acts of defendants HINES and/or “JOHN DOE” #1-10 constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

100. The acts of HINES and/or “JOHN DOE” #1-10 caused plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

101. That defendants HINES and/or “JOHN DOE” #1-10, while acting in the scope of their employment for THE CITY OF NEW YORK as police officers, unlawfully searched/seized plaintiff and used excessive force against plaintiff.

102. As a direct and proximate result of the foregoing conduct of the defendants as set forth above, plaintiff, sustained, *inter alia*, loss of liberty, physical injuries, economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

**FIFTH CLAIM FOR RELIEF UNDER N.Y.C. LAW
VIOLATION OF AC-8-8802 RIGHTS – CITY LIABILITY FAILURE TO INTERVENE**

103. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

104. Defendants HINES and/or “JOHN DOE” #1-10 are “covered individuals” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-8801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

105. Defendant THE CITY OF NEW YORK as the employer of the covered individual defendants HINES and/or “JOHN DOE” #1-10 is liable to the plaintiff for the wrongdoing of the covered individual defendants HINES and/or “JOHN DOE” #1-10.

106. The acts of defendants HINES and/or “JOHN DOE” #1-10 constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

107. Defendants HINES and/or “JOHN DOE” #1-10 had a duty to protect plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

108. The defendants that did not engage in the unreasonable search and seizure of plaintiff and/or the excessive force against plaintiff as outlined above, but were present when

other officers violated those rights of plaintiff, had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

109. Defendants HINES and/or “JOHN DOE” #1-10 failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect plaintiff from a violation of his rights.

110. As a direct and proximate result of the foregoing conduct of the defendants as set forth above, plaintiff, sustained, *inter alia*, loss of liberty, physical injuries, economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys’ fees and costs; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys’ fees, interest, costs, and disbursements of this action.

Dated: New York, New York
September 21, 2022

BY: 
ILYSSA FUCHS
GERALD COHEN
JOSHUA FITCH
COHEN & FITCH LLP
Attorneys for Plaintiff
110 E. 59th St., Suite 3200
New York, N.Y. 10022
(212) 374-9115

ATTORNEY'S VERIFICATION

ILYSSA S. FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, states:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for the plaintiff GUSTAVO ACOSTA in the within-entitled action.

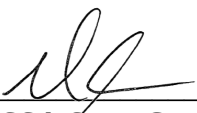
That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
September 21, 2022



ILYSSA S. FUCHS